

25STCV33773 25STCV33773

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NATURE OF PROCEEDINGS: Hearing on Defendant Tanooa

Sparks's Demurrer and Motion to Strike.

Defendant Tanooa Sparks's Demurrer to the Complaint is overruled. Defendant Tanooa Sparks's Motion to Strike is denied.

BACKGROUND

Plaintiff Kristopher Edwards, individually and as successor in interest to decedent Erika Edwards (Plaintiff), filed this action against Davontay Bernie Robins (Robins), Tanooa Sparks (Sparks), Davontay Robins, LLC, All Together We Can, LLC, and Does 1 through 50 (collectively, "Defendants").

Plaintiff alleges that on June 29, 2025, Robins drove a Mercedes-Benz owned by Sparks while intoxicated and at an excessive speed on Sunset Boulevard, struck and killed Erika Edwards, a pedestrian, and fled the scene. (Compl. ¶¶ 15-16.)

Plaintiff further alleges that Sparks, the registered owner of the vehicle, entrusted it to Robins despite knowing of his prior conviction for driving under the influence, his suspended and revoked license, his outstanding arrest warrants, and his pattern of impaired driving. (Compl. ¶¶ 17, 48-49.)

The causes of action are: (1) Negligence and Negligence Per Se (Wrongful Death); and (2) a Survival Action.

Sparks filed a Demurrer and a Motion to Strike. Plaintiff

filed an Opposition.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or the facts alleged.” [Citation.]” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) As such, courts assume the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

A special demurrer for uncertainty is disfavored. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) [s]trike any irrelevant, false, or improper matter inserted in any pleading....” (Code Civ. Proc., § 436.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

DEMURRER ANALYSIS

Sparks specially demurs to the first and second causes of action for uncertainty under Code of Civil Procedure section 430.10, subdivision (f), directing the demurrer at paragraphs 34 and 43 and arguing that the Complaint alleges no duty.

The demurrer fails at the threshold because it attacks only portions of each cause of action. Sparks demurs to paragraph 34 and paragraph 43, not to either cause of action as a whole. A demurrer does not lie to a portion of a cause of action; it must dispose of an entire cause of action to

be sustained. (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682-1683.)

The uncertainty ground also fails on its own terms. A special demurrer for uncertainty is sustained only where the pleading is so unintelligible that the defendant cannot reasonably determine what is required to respond. (Khouri v. Maly's of California, Inc., supra, 14 Cal.App.4th at p. 616.)

Here, the Complaint alleges that Defendants owed a duty to operate, own, entrust, and control the vehicle with reasonable care. (Compl. ¶ 32.) As to Sparks, the Complaint alleges that she was the registered owner and entrusted the vehicle to Robins when she knew or should have known that he was incompetent, unfit, or reckless. (Compl. ¶ 34.)

A vehicle owner may be liable for negligent entrustment where the owner knew or should have known that the person entrusted with the vehicle was incompetent or unfit to drive. (McKenna v. Beesley (2021) 67 Cal.App.5th 552, 566-567.) An owner also has an affirmative statutory duty to make a reasonable effort or inquiry into whether a prospective driver holds a valid license before permitting that person to drive the owner's vehicle. (Veh. Code, § 14604, subd. (a).) These allegations plead a duty.

Accordingly, the Demurrer is overruled.

MOTION TO STRIKE

Sparks moves to strike the punitive damages allegations at paragraphs 34, 41, 42, 43, 44, 48, 49, 50, 51, and 57, together with the corresponding prayer, as conclusory and unsupported by facts of malice, oppression, or fraud.

Operating a vehicle while intoxicated may itself constitute malice where the driver acts in conscious disregard of the probable dangerous consequences, being aware of those consequences and willfully failing to avoid them. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-896.) A claim for punitive damages against an owner who did not drive, however, must rest on the owner's own conscious disregard, not on the driver's conduct alone.

The Complaint alleges that conduct. It alleges that Sparks

knew of Robins's prior conviction for driving under the influence, his suspended and revoked license, his outstanding arrest warrants, and his pattern of impaired driving; that she was aware on the day of the collision that he was operating the vehicle while under the influence; that she took no action to stop him; and that she permitted the use for her own financial benefit. (Compl. ¶¶ 48-49.)

Read as a whole and assumed true, these are ultimate facts of the owner's own willful and conscious disregard of the safety of others, not bare labels. (Clauson v. Superior Court, supra, 67 Cal.App.4th at p. 1255.) Whether that conduct is despicable, and whether Plaintiff can prove it by clear and convincing evidence, are questions for a later stage.

Accordingly, the Motion to Strike is denied.

CONCLUSION

Sparks's Demurrer to the first and second causes of action is overruled. The Motion to Strike is denied. Sparks has ten days to file an Answer.